

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:

THOMAS HESS,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trialCITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. DANIEL NUNEZ, P.O. DENNIS
P. O'SULLIVAN and OFFICER[S] JOHN AND JAMES
DOE, names being fictitious and meant to designate
additional offending officers,
Defendants.The basis of venue is:
CPLR 504 (3)**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
May 23, 2013
By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007
P.O. Daniel Nunez, Shield No. 018750, P.O. Dennis P. OSullivan Shield No. 022219
47th Precinct, 4111 Laconia Ave, Bronx NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
THOMAS HESS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. DANIEL NUNEZ P.O. DENNIS
P. O'SULLIVAN and OFFICER[S] JOHN AND JAMES
DOE, names being fictitious and meant to designate
additional offending officers,

Defendants.
-----X

2013 MAY 24 11:15:09
CLERK'S OFFICE
COUNTY OF BRONX

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF THOMAS HESS

1. At the time of the commencement of this action, Plaintiff THOMAS HESS was

and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about March 29, 2012, P.O. DANIEL NUNEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about March 29, 2012, at approximately 5:30 P.M., P.O. DANIEL NUNEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about March 29, 2012, P.O. DENNIS P. O'SULLIVAN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about March 29, 2012, at approximately 5:30 P.M., DENNIS P. O'SULLIVAN was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about March 29, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about March 29, 2012 at approximately 5:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about March 29, 2012 at approximately 5:30 P.M., at Apartment 4F of 667 East 233rd Street, Bronx, New York, the plaintiff THOMAS HESS was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine THOMAS HESS.

12. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

13. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

14. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

15. That the defendants P.O. DANIEL NUNEZ, P.O. DENNIS P. O'SULLIVAN and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

16. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

17. That all criminal charges brought against plaintiff, which were brought under docket number 2012BX019240 in the Bronx County Supreme Court Criminal Division regarding the incidents of March 29, 2012, were dismissed by the Honorable George Villegas on August 14, 2012, and the criminal proceedings were terminated in plaintiff's favor.

18. That all criminal charges brought against plaintiff were begun in malice without a reasonable belief that the prosecution would succeed.

19. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

20. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured.

21. As a result thereof plaintiff was wrongfully imprisoned for approximately eleven days.

22. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately one hundred and thirty eight days.

23. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers.

24. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and said practice of having arrest quotas or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several

witnesses that officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely stop minority men without a legal reason to do so and are required or expected to do so, to satisfy arrest quotas. Said productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual.

25. Said practice and procedure that results in the arrests of innocent persons is openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

26. Moreover, patterns of such unlawful arrests of persons when individualized reasonable or probable cause is lacking is demonstrated by and has occurred to such individuals such as ADEUNA CABRAL ,an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL,JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton

Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York , and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

27. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his

Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

29. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

30. That as a result of the foregoing, the plaintiff THOMAS HESS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF THOMAS HESS

31. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

32. That on or about October 4, 2012, and deemed timely served, nunc pro tunc, by Order of Justice Larry S. Schachner of the Bronx County Supreme Court dated October 4, 2012 issued under Index No. 260729/12, plaintiff caused a Notice of Claim, sworn to

by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on November 28, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

33. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

34. That plaintiff THOMAS HESS was confined by and as a result of defendants aforementioned actions, conduct and/or omissions.

35. That the defendants, their agents, servants and/or employees intended to confine the plaintiff THOMAS HESS.

36. That plaintiff was conscious of his confinement THOMAS HESS.

37. That plaintiff did not consent to his confinement THOMAS HESS.

38. That the confinement of the plaintiff was not otherwise privileged.

39. That plaintiff was released from confinement after approximately eleven days.

40. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

41. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

42. That as a result of the foregoing, the plaintiff THOMAS HESS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF THOMAS HESS

43. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 42 as though more fully set forth herein.

44. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

45. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

46. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

47. That as a result of the foregoing, the plaintiff THOMAS HESS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF THOMAS HESS

48. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 47 as though more fully set forth herein.

49. That the defendants P.O. DANIEL NUNEZ, P.O. DENNIS P. O'SULLIVAN and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

50. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

51. That all criminal charges brought against plaintiff, which were brought under docket number 2012BX019240 in the Bronx County Supreme Court Criminal Division regarding the incidents of March 29, 2012, were dismissed by the Honorable George Villegas on August 14, 2012, and the criminal proceedings were terminated in plaintiff's favor.

52. That all criminal charges brought against plaintiff were begun in malice without a reasonable belief that the prosecution would succeed.

53. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

54. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately one hundred and thirty eight days.

55. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

56. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

57. That as a result of the foregoing, the Plaintiff THOMAS HESS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF THOMAS HESS

58. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

59. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper entries upon premises without search warrants and in the proper conducting of arrests of individuals.

61. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff THOMAS HESS was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
May 23, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
THOMAS HESS

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Daniel Nunez, Shield No. 018750, P.O. Dennis P. O'Sullivan Shield No. 022219
47th Precinct, 4111 Laconia Ave, Bronx NY 10466

PLAINTIFF'S VERIFICATION

THOMAS HESS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Thomas Hess
THOMAS HESS